

Complaint Report (CCRB)

CCRB Case No :	201509979	C/V Report Date :	Mon, 11/23/2015
Complaint Type :	CCRB	Investigator :	Laura Kastner
Complaint Made At :	CCRB	Ref. No	
Received Date (CCRB) :	Mon, 11/23/2015	Mode :	On-line website
Incident Date(s) :	Wed, 09/30/2015 3:10 PM		
Place of Occurrence:	[REDACTED]	Precinct:	52
Location :	Commercial building	Boro:	Bronx
Reason for Initial Contact :	PD suspected C/V of violation/crime - street		
Charges:	Summons - disorderly conduct		

Complainant/Victim Details

Name:	[REDACTED]	Type:	Comp/Victim
Address:	[REDACTED]		
Contacts:	[REDACTED]	[REDACTED]	
	[REDACTED]	[REDACTED]	
	[REDACTED]		
Gender:	[REDACTED]	Ethnicity:	[REDACTED]
Person Assisting:		Date of Birth:	[REDACTED]

Name:	[REDACTED]	Type:	Victim
Address:	[REDACTED]		
Contacts:	[REDACTED]	[REDACTED]	
	[REDACTED]	[REDACTED]	
	[REDACTED]		
Gender:	[REDACTED]	Ethnicity:	[REDACTED]
Person Assisting:		Date of Birth:	[REDACTED]

Officer(s) Named in Complaint

Rank	Officer	S/W Officer	Tax No	Race	Cmd	Allegations/Board Dispositions
	An officer	Subject Officer	[REDACTED]		052	Word - (D) Unsubstantiated
	An officer	Subject Officer	[REDACTED]		052	Gender - (Female) - (E) Unsubstantiated
POM	Brandon Gembecki	Subject Officer	[REDACTED]	White	052	Retaliatory summons - (A) Substantiated (Formalized Training)
POM	Brandon Gembecki	Subject Officer	[REDACTED]	White	052	Word - (D) Unsubstantiated
POM	Brandon Gembecki	Subject Officer	[REDACTED]	White	052	Frisk - (A) Exonerated

POM	Brandon Gembecki	Subject Officer	[REDACTED]	White	052	Search (of person) - (A) Unsubstantiated
POM	Adam Landesberg	Subject Officer	[REDACTED]	White	052	Refusal to provide name/shield number - (A) Unsubstantiated
POM	Adam Landesberg	Subject Officer	[REDACTED]	White	052	Word - (D) Unsubstantiated
POM	James Lundy	Subject Officer	[REDACTED]	White	052	Refusal to provide name/shield number - (A) Unsubstantiated
POM	James Lundy	Subject Officer	[REDACTED]	White	052	Word - (D) Unsubstantiated
SGT	Charles Cavallaro	Subject Officer	[REDACTED]	White	052	Refusal to provide name/shield number - (A) Unsubstantiated
SGT	Charles Cavallaro	Subject Officer	[REDACTED]	White	052	Word - (D) Unsubstantiated
SGT	Charles Cavallaro	Subject Officer	[REDACTED]	White	052	Race - (Black) - (E) Unsubstantiated
SGT	Charles Cavallaro	Subject Officer	[REDACTED]	White	052	Stop - (A) Exonerated

Initial Complaint Narrative

ON NOVEMBER 23, 2015, [REDACTED] FILED THE FOLLOWING ONLINE COMPLAINT:STORY: WHILE I WAS OUTSIDE GETTING JUICE FOR MY DAUGHTER AFTER WORK, I WAS IN A STORE AND NOTICED FOUR COPS WALK IN. I DID NOT PAY ANY ATTENTION TO THEM. THEY ORDERED THEIR SANDWICHES AND STARTED STARING AT ME FOR AT LEAST FIVE MINUTES. AFTER PAYING FOR MY MERCHANDISE, I EXITED THE STORE AND WALKED A BLOCK TO MY HOUSE. I WAS GRABBED FROM BEHIND AND THROWN UP AGAINST A WALL. WITHOUT ASKING, THEY WENT IN MY POCKETS. I ASKED THEM WHAT I DID. THEY SAID NOT TO WORRY AND THAT THEY WOULD TELL ME IN A MINUTE. THEY ASKED FOR IDENTIFICATION. I SAID I JUST CAME OUTSIDE FOR PIZZA AND JUICE AND THAT I JUST CHANGED FROM MY WORK CLOTHES. THEY ASKED MY GIRLFRIEND TO GO GET MY ID FROM UPSTAIRS. SHE DID. WHILE ALONE WITH THE OFFICERS, I ASKED WHAT I DID. THEY ONCE AGAIN TOLD ME NOT TO WORRY AND SAID THEY WOULD TELL ME WHEN MY GIRLFRIEND GOT BACK. MY GIRLFRIEND, [REDACTED] RETURNED WITH ID IN HAND. THEY PROCEEDED TO SHOW US A PICTURE SAYING IT WAS ME WHEN IT WAS NOT ME AS YOU COULD TELL AND THEY SAID I WAS WANTED, BUT WOULD NOT TELL ME WHAT FOR EVEN THOUGH I ASKED. THEY PROCEEDED TO ARREST ME WITHOUT TELLING ME WHAT FOR OR READING MY RIGHTS. I SAID, "YOU CAN'T DO THIS. I DIDN'T DO NOTHING." THEY PUT ME IN A COP CAR. MY GIRLFRIEND TOOK PICTURES AND RECORDED THEM SAYING THEY COULD NOT DO THIS AND ASKED WHERE THEY WERE TAKING ME BUT THEY DID NOT RESPOND. SHE WALKED UP TO THE COP CAR AND THEY GOT OUT AND ARRESTED HER, SAYING THEY WERE GOING TO CHARGE HER WITH ATTEMPTING TO ESCAPE. NOW I'M SCARED BECAUSE OF HOW THE COPS ARE ACTING TODAY. SANDRA BLAND, EDDIE GRAY. AND I START SCREAMING AND SAYING, "YOU CAN'T DO THIS." THEY TELL US TO SHUT UP, THAT WE ARE NIGGERS, AND THAT IF WE HAD PARENTS, WE WOULD NOT BE IN THIS SITUATION. WE WERE WRONGFULLY ARRESTED AND SEARCHED AGAINST MY WILL, CALLED RACIAL NAMES AND RACIALLY PROFILED, MY GIRLFRIEND WAS ARRESTED FOR FILMING AND ASKING WHY THEY WERE ARRESTING ME AND CHARGED WITH DISORDERLY CONDUCT IN THE END, WHICH IS NOT FAIR OR TRUE AND MAY AFFECT MY EMPLOYMENT AS A [REDACTED] IFIRSTNAME: GOMILASTNAME: BEUCISUBWIT: SUBJECTIGENDER: MALEIPCT: 52NDISHLID: 949018IPLCTH: PLAINCLOTHESIDESCIP: FAT, BUILD, MEDIUM HEIGHT, BLACK HAIR, BROWN EYESIROLE: WAS THE ONLY NICE ONE THE OTHERS. HE WAS WITH THE OTHER THREE OFFICERS. WOULD NOT GIVE ME THEIR NAME OR BADGE NUMBERS. SAID THAT HE WAS MY ARRESTING OFFICER, SO ALL I NEEDED WAS HIS BADGE NUMBER.IFIRSTNAME2: WOULDN'T GIVEILASTNAME2: REFUSEDISUBWIT2: SUBJECTIGENDER2: MALEIRACE2: WHITEIPCT2: 52ISHLD2: REFUSED TO GIVEIPLCTH2: PLAINCLOTHESIFTCAR2: IN CARIDESCIP2: TALL, RACIST, WHITE, BLACK HAIR, BROWN EYES, I BELIEVE MEDIUM HEIGHT, MEDIUM BUILTIROLE2: CALLED ME RACIST NAMES. SEARCHED POCKETS WITHOUT ASKING. PUT ME IN HANDCUFFS. SAID HE WOULD ARREST EVERY BLACK PERSON WITH HAIR IF HE HAD TO. CALLED ME "NIGGER." ARRESTED MY GIRLFRIEND FOR FILMING.IFIRSTNAME3: REFUSEDILASTNAME3: REFUSEDISUBWIT3: SUBJECTIGENDER3: MALEIRACE3: WHITEIPCT3: 52ISHLD3: REFUSEDIPLCTH3: PLAINCLOTHESIFTCAR3: IN CARIDESCIP3: TALL, SKINNY, WHITE, BLACK HAIRIROLE3: RACIALLY PROFILED ME, HARASSMENT

Witness
